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File No.: EXP202213652

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 27/12/2022, the Director of the Spanish Agency for Data Protection sent an internal note to the General Subdirectorate for Data Inspection indicating the following:

"This Agency has been informed, through communication ***COMMUNICATION.1, of a possible infringement in the processing of personal data related to the facts described below.

Additionally, through communication ***COMMUNICATION.2, this Agency has been informed of another possible infringement in the processing of personal data related to the same facts.

The informant, who does not identify themselves or provide any contact method, reports that a video is being disseminated via TWITTER showing a girl performing oral sex on a young man in the middle of a nightclub floor.

Another communication was received on 26/12/2022. Another informant, who does not identify themselves or provide any contact method, reports that a video, recorded and published without consent, is being disseminated via TWITTER, showing two minors engaging in sexual relations in a nightclub.

They provided a screenshot of a tweet published on 25/12/2022 at 17:13 hours from account ***ACCOUNT.1.

The complete video can be viewed through this link: ***LINK.1.

Therefore, the General Subdirectorate for Data Inspection is urged to initiate ex officio Preliminary Investigation Proceedings aimed at verifying these facts.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation proceedings to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

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2/6

1) On 27/12/2022, this Agency issued an urgent removal order to the service provider TWITTER INTERNATIONAL COMPANY, through TWITTER SPAIN SL, to remove the links where the reported video was published within 5 calendar days. Specifically, the order contains the following links:

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***LINK.1

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***LINK.2

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***LINK.3

The notification of this order expired without access to its content; however, this Agency verified in subsequent days that the content was no longer available from the previous links.

2) On 10/03/2023, this Agency sent a request for information to the service provider TWITTER INTERNATIONAL COMPANY, through TWITTER SPAIN SL, requesting the identifying data associated with the profiles from which the reported content was published, which are as follows:

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***PROFILE.1

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***PROFILE.2

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***PROFILE.3

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***PROFILE.4

This request expired after 10 calendar days without access to its content by the provider.

3) On 10/03/2023, the inspection services of this Agency detected the following news published on a website related to the present investigation:

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***URL.1

This news referenced that the Court had ordered TWITTER to inform it about around 40 accounts of "unknown persons" who disseminated the video, with explicit sexual content, without the consent of the individuals appearing in it.

The inspection services of this Agency contacted the unit of (...) that was apparently conducting the investigation (as referenced in the news published in the press); after an initial contact via telephone, a written request was subsequently sent via email requesting collaboration to attempt to obtain the identifying information of the 40 Twitter profiles where the reported content had been published. This request was answered via email on 23/03/2023 by the XXXXXX with the following content:

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3/6

“(...).”

On March 28, 2023, this Agency sent a formal letter to (...) requesting collaboration to attempt to obtain the identification of the individuals responsible for the dissemination of the reported video, with acknowledgment of receipt dated April 4, 2023. As of the date of drafting this report, no response has been received to this request for collaboration.

4) On June 1, 2023, this Agency sent a new request for information to TWITTER INTERNATIONAL COMPANY, via TWITTER SPAIN, requesting identifying information associated with the profiles where the publication of the reported video had been confirmed.

This request expired without access to its content, and no response has been recorded as of the date of drafting this report.

5) As of the date of drafting this report, it is confirmed that the TWITTER accounts, ***CUENTAS.1; have been suspended from the social network.

LEGAL GROUNDS

I
Competence and applicable regulations

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of the GDPR and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to resolve these investigative actions. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of the processing of personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to the GDPR.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection,

recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction;”

Including images that identify or make identifiable a person in published videos constitutes processing of personal data. Thus, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR.

In these cases, as in the present case, the usual legitimizing ground is consent, in general; the person who uploads the personal data and the images that can be viewed without limitation is the one who must demonstrate that they have that consent.

For the processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

In this regard, Recital 40 of the GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the controller is subject or the necessity of executing...

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5/6

a contract in which the interested party is a party or for the purpose of taking measures at the request of the interested party prior to the conclusion of a contract.”

III

Conclusion

In order to identify the person or persons who were disseminating the video with sexual content via Twitter, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

“1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the proceedings.

The Spanish Data Protection Agency will act in any case when the investigation of treatments involving massive traffic of personal data is necessary.

2. The preliminary investigative actions will be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the agreement of admission for processing or from the date of the agreement by which its initiation is

decided when the Spanish Data Protection Agency acts on its own initiative or as a result of communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

As indicated in the “Facts” section of this resolution, it is verified that three of the four Twitter profiles that shared the video have been suspended from the mentioned social network. Specifically, the following: PROFILES.1. However, it has not been possible to determine the identity of those responsible for each of the profiles.

Therefore, since it has not been possible to attribute responsibility for the treatment in the publication of the video, according to what has been indicated by the Director of the Spanish Data Protection Agency, IT IS AGREED:

TO PROCEED TO FILE the present actions.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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